

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior Judge John L. Kane**

Date: March 9, 2009

Deputy Clerk: Bernique Abiakam
Court Reporter: Kara Spitler

Civil Action No.: 00-cv-01077-JLK-KLM

UNITED STATES OF AMERICA, ex rel,
ALI BAHRANI,

George W. Parker, Jr.
Brian Ulmer
Bob Krause

Plaintiff/Relator,

v.

CONAGRA, INC.,
CONAGRA HIDE DIVISION,
CONAGRA BEEF COMPANIES, and
MONFORT, INC.,

Darrell G. Waas
Patricia Campbell

Defendants.

COURTROOM MINUTES

Jury Trial Day 1

8:52 a.m. Court in session.

Court calls case. Counsel and parties present.

Court's preliminary comments and rulings.

The Relator's Exhibit 97 is WITHDRAWN.

The Defendants' objections to Relater's Exhibits 22, 42, 53, 87, 92, 98, and 99 have been WITHDRAWN, therefore those exhibits are ADMITTED.

The Court advises counsel that the ruling on Defendants objections to Exhibits 104 and 111 are PENDING.

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Discussion regarding Relator's Supplement To Preliminary Exhibit List And Notice Of Removal Of Defendants' Objections For March 9, 2009 Jury Trial On Hides Certificates (Filed 3/8/09; Doc. No. 447).

8:58 a.m. Argument by Mr. Krause regarding witness testimony.

9:01 a.m. Argument by Mr. Ulmer.

9:06 a.m. Objection by Mr. Parker regarding the presence of Mr. Mark Gustafson at counsel table.

Objection overruled. The Court advises counsel that one advisory witness per side is allowed.

9:09 a.m. Jury panel brought to the courtroom.

The Court greets the jury panel and advises them regarding trial.

Panel sworn for voir dire.

Members of the Jury panel called to the jury seats for voir dire.

Preliminary instruction by the Court.

Introduction of all counsel and staff, parties, and witnesses.

The Court gives the jury panel further preliminary instruction regarding trial schedule,

10:26 a.m. Voir begins by the Court.

Juror No. 137525 excused for cause from any further service.

Continued voir dire by the Court.

Juror No. 128267 excused for cause from any further service.

Continued voir dire by the Court.

Juror No. 147775 excused for cause from any further service.

Continued voir dire by the Court.

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Juror No. 136647 excused for cause from any further service.

Continued voir dire by the Court.

11:06 a.m. Voir dire begins by Mr. Ulmer.

11:40 a.m. Voir dire begins by Mr. Waas.

11:47 a.m. Court in recess.

11:56 a.m. Court in session.

Plaintiff's/Relator's peremptory challenges:

1000134196

1000158665

1000152657

Defendants' peremptory challenges:

1000157342

1000128617

1000133376

Twelve jurors called to try the case:

1000140157

1000142396

1000158058

1000131286

1000133113

1000149492

1000139894

1000150269

1000155948

1000141504

1000121837

1000129625

12:03 p.m. Jury sworn.

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12:04 p.m. Jury excused.

12:05 p.m. Court in recess.

1:42 p.m. Court in session.

The Court advises counsel of changes made to page 7 of the jury instructions.

1:44 p.m. Jury present.

The Court gives the jury preliminary instructions.

2:24 p.m. Opening statement by Mr. Ulmer.

2:50 p.m. Opening statement begin by Mr. Waas.

3:21 p.m. Court in recess.

Trial continued.

Time in court - 4 hours, 43 minutes.